

Form No:HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

RAWALPINDI BENCH, RAWALPINDI

JUDICIAL DEPARTMENT

F.A.O.No.5 of 2025

Muhammad Waris Vs. Mst.Marroof Begum etc.

S.No. of order/ proceeding	Date of order/ Proceeding.	Order with signature of Judge, and that of parties or counsel, where necessary.
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03.06.2026 Malik Tallat Rashid, Advocate for the appellant.

Through the instant First Appeal, the appellant has called in question the order dated 05.12.2024 passed by the learned Trial Court whereby an application filed by respondent No.1 under Sections 32 and 33 of the Mental Health Ordinance, 2001 (hereinafter “**Ordinance**”), was allowed and respondent No.1 was appointed as guardian/manager of the person of her son, Muhammad Amjad, who was found to be suffering from a mental disorder rendering him incapable of managing his personal affairs.

2. Briefly stated, respondent No.1 instituted an application under Sections 32 and 33 of the **Ordinance**, on 15.05.2024, seeking her appointment as guardian/manager of the person of her real son Muhammad Amjad. It was pleaded that respondent No.1 had contracted marriage with the appellant, and out of the said wedlock two sons, namely Muhammad Amjad and Sajawal, were born. Subsequently, the marriage between the parties was dissolved through divorce. After dissolution of marriage, Muhammad Amjad remained in the custody and care of respondent No.1.

3. According to respondent No.1, Muhammad Amjad was initially leading a normal life; however, after the demise of his younger brother Sajawal, his mental condition deteriorated substantially, ultimately

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resulting in severe mental illness. It was further asserted that respondent No.1 had been bearing all expenses relating to his maintenance, treatment and care, and that Muhammad Amjad was unable to manage his personal affairs independently and remained dependent upon her even for routine daily activities. On these premises, respondent No.1 sought appointment as guardian/manager of his person. The appellant contested the application through a written statement. The learned Trial Court framed issues, recorded evidence adduced by both sides and, upon appreciation of the material available on record, allowed the application vide order dated 05.12.2024, appointing respondent No.1 as guardian of Muhammad Amjad. Hence, the present appeal.

4. Learned counsel for the appellant contended that the learned Trial Court failed to properly appreciate the evidence and passed the impugned order without there being sufficient and reliable medical evidence conclusively establishing that Muhammad Amjad was suffering from such mental incapacity as would render him incapable of managing his person and affairs. It was argued that the findings recorded by the learned Trial Court are based on conjectures and surmises and that the appellant, being the natural father, was equally entitled to be considered for appointment as guardian, but his claim was ignored without lawful justification.

5. I have heard learned counsel for the appellant and carefully perused the record.

6. The foremost question requiring determination is whether Muhammad Amjad suffers from a mental disorder of such nature and extent as to necessitate appointment of a guardian under the provisions of the

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Ordinance and if he is mentally not stable then who is the most suitable person to be appointed as his guardian.

7. The record reveals that the learned Trial Court, in order to ascertain the true mental condition of Muhammad Amjad, passed an order dated 05.06.2024 directing his medical examination through the Medical Superintendent, Government IYB DHQ Hospital, Attock. Pursuant thereto, a medical board examined Muhammad Amjad and submitted its report before the Court. The relevant portion thereof reads as follows:-

“He is suffering from Schizophrenia, continuous currently symptomatic (ICD-11 Code 6A20.20). Schizophrenia is a mental disorder characterized by disturbances in multiple modalities including thinking, perception, volition, self-experience, cognition, affect and behaviour. On psychological assessment there is clear impairment in social, practical and occupational domains. Therefore, he is dependent on his carers for routine activities.”

The aforesaid report has been issued by a competent medical forum and clearly establishes that Muhammad Amjad suffers from schizophrenia accompanied by significant impairment in cognitive, social and functional abilities. The report leaves little room for doubt that he is incapable of independently managing his personal affairs and remains dependent upon caregivers for routine activities of daily life.

8. Significantly, the appellant failed to produce any contrary medical evidence to dislodge or rebut the findings of the Medical Board. Mere denial of the medical condition of Muhammad Amjad, unsupported by expert evidence, cannot outweigh the opinion of qualified medical specialists. During cross-examination of Dr. Muhammad Tufail (AW-2), nothing material could be elicited to cast doubt upon the authenticity or correctness

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of the medical report. Rather, the appellant acknowledged that the report contained the opinion of the Psychiatric Board of a recognized medical institution.

9. It is a settled principle that where a court is confronted with a question regarding the mental capacity of a person, expert medical evidence assumes considerable evidentiary value. In the absence of any convincing material demonstrating mala fides, procedural irregularity, or medical error, the findings of a duly constituted medical board are ordinarily entitled to due weight and consideration.

10. The next part of the present legal problem concerns the suitability of respondent No.1 for appointment as guardian of the minor. The evidence on record establishes that Muhammad Amjad has been residing with respondent No.1 for a considerable period. Respondent No.1 has been attending to his daily needs, medical treatment, maintenance and overall welfare. The evidence further demonstrates that she has remained the primary caregiver of Muhammad Amjad and possesses intimate knowledge of his condition and requirements.

11. On the contrary, the record reflects that since the dissolution of marriage between the parties, the appellant did not seek custody of Muhammad Amjad through any competent forum nor establish that he had been actively involved in the care, treatment or upbringing of the patient. While the status of the appellant as the natural father is not disputed, such status alone is not determinative in guardianship proceedings concerning a mentally incapacitated person. The paramount consideration remains the welfare, protection and best interests of the person requiring guardianship.

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12. The concept of guardianship under the **Ordinance** is not intended to vindicate parental rights but rather to secure the welfare and protection of the mentally disordered individual. Accordingly, preference must be accorded to the person who is demonstrably better placed to safeguard the interests, dignity and well-being of the patient. The material available on record further indicates that respondent No.1 sought guardianship primarily to facilitate the maintenance of medical records, obtain treatment, and avail any governmental assistance or welfare benefits that may be available for persons suffering from mental illness. No evidence has been brought on record suggesting any improper motive or adverse interest on her part.

13. It is also pertinent to note that an appellate court does not ordinarily interfere with findings of fact recorded by the trial court unless such findings are shown to be perverse, arbitrary, based on misreading or non-reading of evidence, or suffering from a jurisdictional defect. The appellant has failed to point out any illegality, material irregularity, misapplication of law, or jurisdictional error in the impugned order as the learned Trial Court examined the evidence in its proper perspective, relied upon unimpeached medical evidence, and recorded findings fully supported by the material available on record. The conclusions reached by the learned Trial Court are neither arbitrary nor unreasonable and call for no interference by this Court.

14. For the foregoing reasons, I am of the considered view that respondent No.1 successfully established that Muhammad Amjad suffers from a serious mental disorder rendering him incapable of managing his personal affairs and that she is the most suitable person to act as his

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guardian. The impugned order is based upon sound appreciation of evidence and correct application of law.

15. Consequently, the present appeal is devoid of merit and is **dismissed in *limine***.

(Syed Ahsan Raza Kazmi)
Judge

Approved for reporting.

Judge

Amjad

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